

26VECV00466 26VECV00466

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26VECV00466 Hearing Date: September 23, 2026 Dept: NWI

26VECV00466 FRANK KARRARI V. SAEED

SAFAI, ET AL.

September 23, 2026, at 8:30 a.m.

Van Nuys Courthouse East Dept. I

Motion to Compel Initial Responses to

Request for Production (Set One);

Request for Sanctions

I.

Background

On January 26, 2026, Plaintiff Frank

Karrari ("Plaintiff" or "Karrari") filed a complaint against Defendants Saeed

Safai ("Safai"), Plastic Zone, Inc. ("PZI"), Plastic Point, Inc. ("PPI"), and

Does 1 through 10. On June 9, 2026,

Plaintiff filed the operative First Amended Complaint ("FAC") alleging seven

causes of action: (1) breach of fiduciary duty; (2) breach of oral agreement;

(3) conversion – PZI; (4) conversion – Plaintiff; (5) accounting; (6) violation

of Cal. Bus. & Prof. Code § 17200 et seq.; and (7) fraudulent transfer.

On August 24, 2026, PZI filed the

instant Motion to Compel Initial Responses to Request for Production of

Documents (Set One) and Request for Sanctions ("Motion"). Plaintiff filed an Opposition on September 9,

2026. No reply has been filed.

II. Discussion

A party must respond to requests

for production of documents within 30 days after service. (Code Civ. Proc., §2031.260, subd. (a).) If a party to whom requests for production of

documents is directed does not provide timely responses, the requesting party

may move for an order compelling response to the discovery. (Code Civ. Proc., §2031.300, subd. (b).) The responding party also waives the right to

make any objections, including ones based on privilege or work-product

protection. (Code Civ. Proc., §2031.300,

subd. (a).) There is no time limit for a

motion to compel responses to production of documents other than the cut-off on

hearing discovery motions 15 days before trial. (Code Civ. Proc., §§2024.020, subd. (a),

2031.300.) No meet and confer efforts

are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko

Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007)

148 Cal.App.4th 390, 411.)

Code of Civil Procedure, section

2023.030, subdivision (a) provides, in pertinent part, that the court may

impose a monetary sanction on a party engaging in the misuse of the discovery

process to pay the reasonable expenses, including attorney's fees, incurred by

anyone because of that conduct. Misuse

of discovery includes "failing to respond or submit to an authorized method of

discovery." (Code Civ. Proc., §2023.010,

subd. (d)). Furthermore, pursuant to section

2031.300, subdivision (c), the court shall impose monetary sanctions "against

any party, person, or attorney who unsuccessfully makes or opposes a motion to

compel a response to a demand for inspection, copying, testing, or sampling,

unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction

unjust."

PZI moves for a court order compelling

Plaintiff to serve verified, code-compliant responses to Requests for

Production (Set One), without objections, within 10 days, produce all

responsive documents within 10 days, and pay monetary sanctions to PZI in the

amount of \$1,750.

PZI served Request for Production of Documents, Set One, on Plaintiff on May 2, 2026. Responses were due 30 days later, on June 2, 2026. PZI asserts that Plaintiff has served responses to other discovery requests. However, despite repeated attempts to meet and confer regarding the missing responses to the Requests for Production, PZI has not received any responses. PZI further moves for an order imposing monetary sanctions against Plaintiff and his counsel of record, Afshin David Youssefyeh and ADY Law Group, P.C., jointly and severally, in the amount of \$1,750, pursuant to Code of Civil Procedure sections 2031.300 and 2023.030. The request for sanctions is calculated as follows: 2 hours spent drafting the Motion and 1.5 hours reviewing the opposition, preparing a reply, and attending the hearing, at a billing rate of \$500 per hour.

Plaintiff

opposes the Motion on the basis that on September 8, 2026, he served verified responses to the Requests for Production (Set One) and produced responsive documents. Plaintiff also requests that the Court deny the request for sanctions because the responses were delayed due to Plaintiff's counsel's immediate family member becoming seriously ill in June. Counsel states that he informed PZI's counsel regarding the reason of the delay, as evidenced in the emails filed by PZI's counsel with the Motion. Counsel also explains that responses were served to outstanding discovery requests in sequence, including responses to Requests for Admission (Set One) being served on June 25, responses to Form Interrogatories (Set One) being served on June 30, and responses to Special Interrogatories (Set One) being served on July 15. Counsel also served a note indicating that the document production was still being assembled as Plaintiff was gathering and reviewing several years of bank, loan, and credit card records, corporate documents, and software records in response to 20 categories of information requested.

Defendant PZI's motion to compel

Plaintiff's responses to Request for Production of Documents, Set One, is denied as moot because Plaintiff served responses and produced responsive documents after the motion was filed but before the hearing. The responses contain statements of compliance, representations that responsive documents could not be located after a diligent search, and a representation that no responsive documents

exist in response to Request No. 16. Any dispute concerning the substantive adequacy of a particular response must be presented through a motion to compel further responses, including a required meet-and-confer declaration (by phone, video or in person only) and a separate statement.

The subsequent service of responses does not preclude sanctions. However, the Court finds that Plaintiff has shown substantial justification for the delay in serving responses as Plaintiff's counsel was facing a family member's illness, attempted to comply with discovery obligations by serving responses to other discovery requests, and informed PZI's counsel that Plaintiff was in the process of compiling documents for production. Accordingly, the request for sanctions is denied.

III.

Conclusion

Defendant Plastic Zone, Inc.'s Motion to Compel Plaintiff Frank Karrari's initial responses to Request for Production of Documents, Set One, is DENIED as MOOT.

Defendant's request for monetary sanctions is DENIED.

Moving party give notice.